

NE.1 What Binds You and Who Can Stop You

The code applies to your house whether or not anyone checks — and the four state obligations that reach a rural parcel with no building department at all.

Before you use this document

This is a process reference, not legal advice. Nebraska adopts one state building code and then makes enforcing it optional: the code is "the legally applicable code regardless of whether the county, city, or village has provided for the administration or enforcement" of it, no county or city has to issue a building permit, and no state agency may inspect a private house. What does not depend on any of that: the **state electrical inspection**, enforced at the power meter; the **energy code**, which you build to yourself; and the **septic and well filings**, which are made by the professional or by you. Confirm every item with the office that will actually handle your parcel before you rely on it. Two sections quoted here were amended in 2026 and carry an Effective Date line on the statute page. Older agency documents — including the State Electrical Division's own rules — have not caught up. Where they disagree, this document prints the statute and says so.

THE SHORT VERSION

Nebraska has no owner-builder exemption because it has nothing to be exempt from. There is no state contractor license, no state building permit, and no state building inspector for a private house. What there is instead is a code that binds you **by statute**, and a short list of state obligations that reach every house through the power company, your own signature, and the professionals you are required to use.

The Nebraska position at a glance

Question	Nebraska's answer
Do you need a license to build your own house?	No. Nebraska issues no general contractor license. The Contractor Registration Act says a person "who performs work or has work performed on his or her own property ... is not a contractor" (§ 48-2104(1))
Does the building code apply if nobody inspects?	Yes. The 2018 IRC and UPC are "the legally applicable code regardless of whether the county, city, or village has provided for the administration or enforcement" (§ 71-6406(7))
Does anyone have to issue a building permit?	No. A local government "may" adopt permits and inspections; nothing says it must, and nothing lets a state agency inspect a private house. Where a county chose to run a program, its rules apply. Where it did not, nobody's do

The Nebraska position at a glance

Question	Nebraska's answer
Is there a frequency limit or a sale test?	None. No statute caps how often you may build for yourself. But building "to be held ... for sale or rental" makes you a contractor (§ 48-2103(3)), and a house that is not your principal residence is outside the electrical exemption (§ 81-2121(5))
Can you wire your own house?	Yes, and it will be inspected. The homeowner exemption is from the <i>license</i> (§ 81-2121(5)). A new service is inspected everywhere (§ 81-2124(3)), the utility may not connect you until you certify the request was filed (§ 81-2129), and not filing is a felony (§ 81-2143(1)(c))
Can you do your own plumbing and HVAC?	No state license exists for either. The plumbing standard is the 2018 UPC everywhere; a city may license plumbers by ordinance and require a permit. Ask the city
Can you drill your own well? Install your own septic?	Well, yes — on land you own and use as your abode (§ 46-1233(2)). Septic, no — a certified installer, engineer or environmental health specialist must be physically present (§ 81-15,248(1); Title 124 ch. 9 § 004)
Who checks the energy code?	You do. With no local energy code, "the prime contractor shall build ... to the best of his or her knowledge, according to the Nebraska Energy Code" (§ 81-1622(1)) — and the owner-builder is the contractor (§ 81-1609(2))

Statutes read at nebraskalegislature.gov in September 2026. The Building Construction Act is §§ 71-6401 to 71-6409; the State Electrical Act §§ 81-2101 et seq.; the Nebraska Energy Code §§ 81-1608 to 81-1626; the Contractor Registration Act §§ 48-2101 to 48-2117.

THE SENTENCE THAT DECIDES YOUR BUILD

Most states adopt a code and then require somebody to enforce it. Nebraska adopts a code, tells every local government it *may* enforce it, and then closes the obvious gap with one sentence at the end of the local-option section:

Neb. Rev. Stat. § 71-6406 — the code that applies whether or not anyone enforces it

"(1)(a) Any county, city, or village **may** enact, administer, or enforce a local building or construction code if or as long as such county, city, or village: (i) Adopts the state building code; or (ii) Adopts a building or construction code that conforms generally with the state building code.

(b) If a county, city, or village does not adopt a code as authorized under subdivision (a) of this subsection within two years after an update to the state building code, **the state building code shall apply** in the county, city, or village, except that such code shall not apply to construction on a farm or for farm purposes."

"(7) A county, city, or village **may** adopt amendments for the proper administration and enforcement of its local building or construction code including organization of enforcement, qualifications of staff members, examination of plans, inspections, appeals, permits, and fees. ... Any local building or construction code adopted under subdivision (1)(a) of this section or the state building code if applicable under subdivision (1)(b) of this section **shall be the legally applicable code regardless of whether the county, city, or village has provided for the administration or enforcement** of its local building or construction code under this subsection."

*The state building code itself is § 71-6403(1): the **2018 International Building Code**, the **2018 International Residential Code** "except section R313 and chapters 25 through 33," the 2018 International Existing Building Code, and the **2018 Uniform Plumbing Code** — plus the radon-resistant construction standards of § 76-3504 (§ 71-6403(2)). Its Source line ends with a 2021 conforming amendment; **no newer edition has been adopted as of September 2026**, and only the Legislature can change it.*

What falls out of that sentence

	What it means for you	Cite
The code binds without a permit	Read the last sentence of (7) again. It is written for exactly the county that never set up a building department. The 2018 IRC is the standard your house must meet there, and a buyer, lender, insurer or court will measure it against that standard	§ 71-6406(7)
Nobody has to permit or inspect	"May," three times. Nothing in the Act requires any county, city or village to issue a permit, review a plan or inspect. And the only place the Act sends a state inspector is a <i>state-owned</i> building — the state has no residential permit program	§ 71-6406(7); § 71-6405(1)
No local government may run an older edition	A local code "shall not be deemed to conform" if it "includes a prior edition of any component" of the state code, or omits radon-resistant construction. A county telling you it is still on the 2012 IRC is telling you something the statute forbids	§ 71-6406(3), (5)
A local government may run a newer one	Adopting "any supplement, new edition, appendix, or component" still conforms. Lincoln is on the 2021 IRC and UPC for that reason. So the state edition is a <i>floor</i> ; ask the city which it reviews to	§ 71-6406(2)(b)
Plumbing is the UPC, not the IRC chapters	IRC chapters 25-33 are its plumbing chapters, and they are excluded because Nebraska adopted the Uniform Plumbing Code instead. Where no city or county plumbing code exists, the 2018 UPC "shall apply to all buildings" — with "no obligation ... to inspect"	§ 71-6403(1)(b), (d); § 23-172(4), (6); § 18-132(4)

New in 2026: virtual inspections, and the one thing they can never be

Laws 2026, LB441 added § 71-6409, effective **July 18, 2026**. Any permitting entity may now "allow for virtual inspection by an authorized inspector" of a one- or two-family dwelling under three stories and under 10,000 sq ft, conducted live, and may accept photo or video for nonstructural reinspections. The definition then closes a door: **"Authorized inspector does not include an individual performing a self-performed inspection for the individual's own permit or building."**

Two things follow. Whatever a county offers, it may not let you inspect yourself. And the virtual path is conditioned on naming "the contractor who is licensed or registered ... and who is completing the work" — which an owner doing the work personally is not. The text does not resolve whether an owner-builder can use it. **Ask whether your county will extend it, and do not assume.**

THE FARM CARVE-OUT, AND THE ZONING PERMIT THAT SURVIVES EVERYTHING

The state-code default "shall not apply to construction on a farm or for farm purposes" (§ 71-6406(1)(b)), and nothing in the Act authorizes "any state agency or political subdivision to regulate the construction of farm buildings" where that is otherwise prohibited (§ 71-6407). **Do not build a farmhouse on that sentence.** Three things about it:

- "On a farm or for farm purposes" is **not defined** anywhere in the Act, and the carve-out is written into the *default* path only — a county that adopted its own code is not, by this section, kept off farm construction.
- The county zoning statute defines the farm exemption for its own purposes as buildings "utilized for agricultural purposes on a farmstead of **twenty acres or more** which produces **one thousand dollars or more** of farm products each year" — and then says outright: **"The county board may decide whether buildings located on farmsteads used as residences shall be subject to such county's zoning regulations and permit requirements."** (§ 23-114.03)
- A dwelling is a residence first and a farm building second. Whether your farmstead house needs a county permit is the county board's call, farm by farm. **Ask the county in writing before you rely on it.**

Even with no building code, a county may require a ZONING permit for the house

"The county board shall provide for enforcement of the zoning regulations within its county by requiring the issuance of permits prior to the erection, construction, reconstruction, alteration, repair, or conversion of any nonfarm building or structure within a zoned area" (§ 23-114.04(1)). That permit "shall not be issued unless the plans ... **including sanitation, plumbing and sewage disposal**, are filed in writing in the building inspector's office and such plans fully conform to all zoning regulations" (§ 23-114.04(2)).

Building "without having first obtained a permit" is a **Class III misdemeanor**, each day a separate offense after notice (§ 23-114.05). This is a zoning permit, not a code permit — it exists in counties that never adopted a building code — and it is the reason the septic design has to exist before the county will look at the house.

And near a city, the city may govern. A county's codes reach "all of the county except within the limits of any incorporated city or village and except within an unincorporated area where a city or village has been granted zoning jurisdiction" (§ 23-172(5)). Omaha regulates construction, "electric wiring, heating, plumbing, pipefitting" across its three-mile extraterritorial zone (§ 14-419(1)–(2)); Lincoln has the same power under § 15-905. A rural-looking parcel a few miles out may be under city rules.

THE FOUR THINGS THAT REACH YOUR HOUSE ANYWAY

This is the page to keep. Outside a city or county that runs a program, no building official will ever visit — and every one of these still applies, because each is enforced by something other than a building department.

Statewide, whoever does or does not run a building department

Obligation	What it requires	Who enforces it, and how	Cite
1. State electrical inspection	Every new single-family installation "requiring new electrical service equipment" is inspected — by the State Electrical Division, or by a local certified inspector where the city or county runs its own program	The power company. No connection until your certificate that inspection was requested is on file with the utility, which "may refuse service without liability"	§ 81-2124(3); § 81-2129
2. Nebraska Energy Code	The 2018 IECC, unamended, statewide, for every building started on or after July 1, 2020. No exemption for a house, a farm dwelling or an owner-built home	You. The prime contractor — the owner-builder — "shall build ... according to the Nebraska Energy Code." Two-year post-occupancy correction order; Class IV misdemeanor	§ 81-1614; § 81-1622; § 81-1625; § 81-1626
3. Septic registration	No onsite wastewater system may be sited, laid out, built or inspected except by or under a certified professional, engineer or environmental health specialist who is physically on site	The professional. They must register the system with DWEE within 45 days of completion and hand you a copy. Civil penalty up to \$10,000 per violation per day	§ 81-15,248(1)–(2); § 81-15,253; Title 124 ch. 9 § 004

Statewide, whoever does or does not run a building department

Obligation	What it requires	Who enforces it, and how	Cite
4. Well registration	Every well is registered with DWEE within 60 days of completion, with the well log — by the licensed driller, or "the owner of the water well if the owner constructed the water well"	You, or your driller. An unregistered well is the record that is missing when you sell; a licensee who fails to file is subject to discipline	§ 46-602(1); § 46-1241; § 46-1235

A fifth applies by statute but is checked by nobody outside a local program: **radon-resistant new construction**, required of every regularly occupied building built after September 1, 2019 (§ 76-3504), with two exemptions — an architect- or engineer-designed project, and the counties DHHS lists below 2.7 pCi/L (§ 76-3505). NE.2 prints the standard and the county list.

ELECTRICAL — A LICENSE EXEMPTION, NOT AN INSPECTION EXEMPTION

The State Electrical Act licenses anyone who wires "for another" (§ 81-2106, § 81-2108), and then carves you out in one subdivision. Read the carve-out exactly, because guides routinely add conditions that are not in it and drop the ones that are.

Neb. Rev. Stat. § 81-2121 — the homeowner exemption, verbatim

"Nothing in the State Electrical Act shall be construed to: ... (5) Prohibit an owner of property from performing work on his or her **principal residence, if such residence is not larger than a single-family dwelling, or farm property**, excluding commercial or industrial installations or installations in public-use buildings or facilities, **or require such owner to be licensed under the act.**"

- It exempts you from the **license**. It says nothing about inspection or the request for inspection; those live in § 81-2124 and § 81-2126, and they apply to you.
- "Principal residence ... not larger than a single-family dwelling" — a duplex, a spec house, a rental or a second home is outside it. "Farm property" is a separate category.
- It does **not** say "without compensation" and it does **not** say you must personally do the work. Those conditions appear in published guides; they are not in the statute or in the State Electrical Division's own homeowner handout. What the handout does require is a signed **homeowner verification** that you know the code and the Act before a permit is issued to you.

What still applies to you, in the statute's words

	What the section says	Cite
A new house is inspected, everywhere	"All new electrical installations for single-family residential applications requiring new electrical service equipment shall be subject to the inspection and enforcement provisions of the act." A new house has new service equipment. State inspection yields only to a county, city or village that inspects with its own certified inspector by ordinance (§ 81-2125(1)) — NE.4 has the map	§ 81-2124(3)
The request is due before you start	"At or before commencement of any installation required to be inspected by the board, the licensee or owner making such installation shall submit to the board a request for inspection ... together with ... the inspection fees." If the board learns you did not, it sends a certified letter giving 14 days; "Any person filing a late request for inspection shall pay a delinquent fee of two hundred fifty dollars ," and after the 14 days the file goes to the county attorney	§ 81-2126
The meter is the checkpoint	"No electrical installation subject to inspection by the board shall be newly connected or reconnected for use until there is filed with the electrical utility supplying power a certificate of the property owner or licensed electrician directing the work that inspection has been requested and that the conditions of the installation are safe for energization. ... Any supplier may refuse service without liability for such refusal until such conditions have been met"	§ 81-2129
Why the utility will insist	On inspection and approval, "all liability upon any supplier of electrical service for subsequent damage or loss arising from any installation shall be terminated." The power company has a statutory reason to want the inspection done, and the Division forwards a copy of a new-service permit to the supplier	§ 81-2133

Since July 18, 2026, not filing is a felony — and the Division's own documents still say misdemeanor

Laws 2026, LB889 (approved April 14, 2026; effective **July 18, 2026**) struck "Class I misdemeanor" from § 81-2143(1) and inserted "**Class IV felony**." The section now reads: "It shall be a Class IV felony to knowingly and willfully commit ... (a) To make a false statement in any ... request for inspection, certificate, or other lawfully authorized or required form ...; (b) To perform electrical work for another without a proper license ... while claiming to have such license; **(c) To fail to file a request for inspection when required**; (d) To interfere with or refuse entry to an inspector ...; or (e) To fail or neglect to comply with the act or any lawful rule, regulation, or order of the board."

Note (a): the homeowner verification you sign is one of those forms. Note also what has *not* caught up. The State Electrical Board Rules PDF dated April 23, 2024 (Rule 13) still says a person "may be guilty of a misdemeanor under §81-2143," and every pre-2026 guide repeats it. The slip law was read; the statute page carries the Effective Date. **The statute wins.**

The same bill added a family carve-out, § 81-2143(2): subdivision (1)(b) — the *unlicensed work while claiming a license* felony — "shall not be construed to prohibit a person from performing electrical work for such person's parent, stepparent, spouse, descendant, grandparent, brother, sister, cousin, uncle, or aunt ... without a license."

Printed for accuracy, not as permission. It narrows one felony. It does not amend the § 81-2108 license requirement, and the installation is inspected either way. Whether it reaches the license rule is untested.

Three details that decide who may touch the wiring

	The rule	Cite
The furnace and condenser wiring is a licensed specialty	"Special electrician" covers "well pump wiring, air conditioning and refrigeration installation." Your own furnace wiring is inside your exemption; a hired HVAC installer wiring the unit is not, unless licensed for it. A licensed pump installer may wire a well pump "to the first control" without an electrical license	§ 81-2102(17); § 81-2121(7)
A Class B electrician cannot work in Omaha or Lincoln	Class B contractors and journeymen are confined to residential work up to 400 amps "in any municipality which has a population of less than one hundred thousand." Relevant when hiring: check the class of license against the city	§ 81-2102(4)–(5)
The Division misquotes its own statute	The homeowner handout (May 2024) prints the exemption as work on a "principal residence or/arm property" — dropping the "not larger than a single-family dwelling" limit and garbling "or farm." The statute controls; it is quoted above	SED handout; § 81-2121(5)

The electrical code itself is the **2023 NEC**, effective August 1, 2024, with five sections held at their 2017 text (§ 81-2104(5)) — NE.2 lists them. The request-for-inspection form, fees, clocks and permit life are in NE.2 and NE.3.

ENERGY — THE CODE YOU ENFORCE ON YOURSELF

There is no state energy permit, no state energy inspection on request, and no state certificate. What the statute does instead is name the person responsible and give them a duty:

Neb. Rev. Stat. § 81-1622 — where no local energy code exists

"(1) When no architect or engineer is retained, **the prime contractor shall build or cause to be built, to the best of his or her knowledge, according to the Nebraska Energy Code**; and (2) When an architect or engineer is retained: (a) The architect or engineer shall place his or her state registration seal on all construction drawings which shall indicate that the design meets the Nebraska Energy Code and (b) the prime contractor responsible for the actual construction shall build or cause to be built in accordance with the construction documents prepared by the architect or engineer."

The Nebraska Energy Code in six rules

	What the statute says	Cite
Who the "contractor" is	"The person or entity responsible for the overall construction of any building." On an owner-built house that is you	§ 81-1609(2)
What it is	"The 2018 International Energy Conservation Code," applied to every building started on or after July 1, 2020. Exemptions: unheated and uncooled buildings, federal buildings, manufactured and modular units, historic buildings. Not houses, not farm dwellings, not owner-builders	§ 81-1609(9); § 81-1614; § 81-1615
The two-year window	If the Director of DWEE "or the local code authority finds, within two years from the date a building is first occupied," that it did not comply, they "may order the owner or prime contractor to take those actions necessary to bring the building into compliance"	§ 81-1625
The penalty	Failure to comply, or "ordering, instructing, or directing another not to comply," is a Class IV misdemeanor	§ 81-1626
How anyone would find out	Inspections "shall be conducted only after permission has been granted by the owner or occupant or after a warrant has been issued." And "a building owner may submit a written request that the department undertake a determination" — the complaint path a later buyer holds	§ 81-1617; § 81-1616
The local option	Any county, city or village "may adopt and enforce a local energy code," charge fees, and waive a specific requirement it finds "not economically justified" after filing its analysis with DWEE. Where one exists, its inspections apply	§ 81-1618

DWEE's energy-code page (September 2026) says that where no local code exists its Planning and Aid Division "will enforce the code." Read with § 81-1622, that means the determination-on-request and the two-year order above — not a permit and not a routine visit. The 2018 IECC prescriptive values, the blower-door limit and the climate zone are in NE.2.

WHAT YOU MAY DO WITH YOUR OWN HANDS

Five trades, five different answers

Trade	May you do it yourself?	The condition that matters	Cite
Electrical	Yes , on your principal residence (single-family) or farm property, without a license	Inspected regardless; request filed before you start; utility holds the meter until you certify; homeowner verification signed	§ 81-2121(5); § 81-2124(3); § 81-2126; § 81-2129
Plumbing	No state license exists for plumbers at all. The standard is the 2018 UPC everywhere a city or county has not adopted its own	Omaha <i>shall</i> and Lincoln <i>may</i> have a plumbing board whose plumbers are "licensed within such cities"; the board may compel plans to be submitted. Lincoln issues a homeowner plumbing permit for a primary residence. Ask the city; outside one, nobody has to inspect	§ 18-1901(1), (6); § 18-1906; § 18-132(4); § 23-172(4)
Mechanical (HVAC)	No state license or permit. Verified by reading the full section indexes of Chapters 18, 38, 71 and 81 — the only hits are municipal plumbing boards and the electrical specialty	The standard is the 2018 IRC's own chapters 12–24, which were adopted. The <i>wiring</i> of the unit is a licensed electrical specialty if anyone but you does it	§ 71-6403(1)(b); § 81-2102(17)
Water well	Yes. "An individual may construct a water well or install and repair pumps and pumping equipment onsite on land owned by him or her and used by him or her for farming, ranching, or agricultural purposes or as his or her place of abode"	To the Title 134 construction standards — the exemption is from the license, not the standard. You register it within 60 days and keep the well log	§ 46-1233(1)–(2); § 46-602(1); § 46-1241

Five trades, five different answers

Trade	May you do it yourself?	The condition that matters	Cite
Septic	No. No system "shall be sited, laid out, constructed ... or inspected unless" the work "is carried out or supervised by" a certified professional, a Nebraska-licensed engineer or a registered environmental health specialist	And "supervised" means present: no one may do the work unless the responsible installer, engineer or specialist "is physically present at the site where such work is being performed." You may dig beside a Master Installer who stays on site. You may not build it alone	§ 81-15,248(1); Title 124 ch. 9 § 004

*There is no statewide plumber registry to search, because plumbing licenses are city licenses issued under city ordinances. **Inside a city with a plumbing board, ask whether a homeowner may pull the plumbing permit and write the answer down.** Lincoln's conditions are verified in NE.4; Omaha's could not be read and must be confirmed at the counter.*

THE REGISTRATION ACT — YOU ARE OUTSIDE IT; EVERYONE YOU HIRE IS INSIDE

Nebraska's only statewide contractor law is a **\$40 registration** with the Department of Labor, and the Legislature says what it is not: "It is not the intent of the Legislature to endorse the quality or performance of services provided by any individual contractor" (§ 48-2102). It matters to you for one reason — the public registry tells you whether the people you hire carry workers' compensation.

The Contractor Registration Act, as it touches an owner-builder

	What the Act says	Cite
You do not register	"Any person who performs work or has work performed on his or her own property ... is not a contractor for purposes of the Contractor Registration Act." The Department's own page: a contractor works on real property "other than their own property"	§ 48-2104(1)
Every trade you hire does	"Before performing any construction work in Nebraska, a contractor shall be registered" — including "any subcontractor" and anyone "providing or arranging for labor." Annual fee capped at \$40; it reached the cap August 1, 2026	§ 48-2104(1); § 48-2103(3); § 48-2107

The Contractor Registration Act, as it touches an owner-builder

	What the Act says	Cite
What the registry shows	Registration requires "proof of workers' compensation insurance, self-insurance, or a signed statement that none is required," and the public database must flag each contractor as insured, self-insured, or "a sole proprietor with no employees and does not carry workers' compensation insurance." Lapse of coverage revokes the registration	§ 48-2105; § 48-2117(3); § 48-2109
What happens if you hire an unregistered one	Nothing, to you. Every duty and penalty in the Act attaches to the contractor — a citation and an administrative penalty up to \$500, then \$5,000. Verified absence: no section penalizes the person who hires. The reason to check anyway is the next row	§ 48-2114; §§ 48-2101-2117
A spec builder is a contractor	The definition reaches construction of property "to be held either for sale or rental." Building to sell is not owner-building, whatever the permit says — and it also takes you outside the electrical exemption's "principal residence"	§ 48-2103(3); § 81-2121(5)

Workers' compensation — the one sentence that protects you, and the honest position on the rest

Nebraska treats as an employer anyone "creating or carrying into operation any scheme, artifice, or device" to get work done without answering to the workers under the Act, jointly and severally liable with the immediate employer. The same section then says it "shall not be construed as applying to an owner who lets a contract to a contractor in good faith ... **if the owner ... requires the contractor ... to procure a policy or policies of insurance from an insurance company licensed to write such insurance in this state**" (§ 48-116).

So the rule is mechanical: require a workers' compensation certificate (ACORD 25) from every contractor with employees before they start, and check the Department of Labor registry flag for anyone who says they have none. The Department requires the same certificate of every registrant with one or more employees, naming the Department as certificate holder.

On whether an owner-builder who hires a day laborer directly is an "employer": the Act applies to an employer who employs "in the regular trade, business, profession, or vocation of such employer" (§ 48-106(1)), and "employee" excludes anyone whose employment is "not in the usual course of the trade, business, profession, or occupation of his or her employer" (§ 48-115). Building your own house is not your trade. **We are not printing that as a safe harbor** — a tribunal decides "usual course" on facts, and being wrong carries a Class I misdemeanor plus personal liability (§ 48-145.01(1)). Insure the risk or hire through a registered, insured contractor.

LIENS — YOU ARE A "PROTECTED PARTY," AND IT CHANGES THE ARITHMETIC

The Nebraska Construction Lien Act gives a homeowner a status most states do not: a **protected party** is "an individual who contracts to give a real estate security interest in, or to buy or to have improved, residential real estate all or a part of which he or she occupies or intends to occupy as a residence" (§ 52-129(1)(a)). An owner-builder building their own home is one. Three consequences:

What protected-party status does for you

	What the Act says	Cite
The 120-day clock	A claimant's lien "does not attach and may not be enforced unless ... not later than one hundred twenty days after his or her final furnishing of services or materials, he or she has recorded a lien"	§ 52-137(1)
The notice, and its warning	A sub or supplier "may give notice of the right to assert a lien to the contracting owner," and the notice must carry the words: "If you did not contract with the person giving this notice, any future payments you make in connection with this project may subject you to double liability." The section applies only when the owner is a protected party — which is you	§ 52-135(1), (6)
The cap	Against a protected-party owner, a claimant who is not your direct contractor is capped at the lesser of their own unpaid amount or the amount you still owed the prime contractor when the notice arrived. Payments made in good faith before notice are "properly made"	§ 52-136(2), (5)

The practical rule: keep every "notice of the right to assert a lien" you receive with its date; once one arrives, stop paying the prime contractor's unpaid balance to anyone else until it is resolved; and collect a signed lien waiver with every payment to every trade. If you are your own general contractor, every trade is contracting with you directly, which makes the waivers the whole of your protection.

When you sell — the disclosure statement, and the exemption you lose by moving in

Every seller of residential real property gives the written disclosure statement (§ 76-2,120(2)) — except on a transfer "of newly constructed residential real property which has never been occupied" (§ 76-2,120(6)(k)). An owner-builder who lives in the house and sells later is inside the statute. The statement is "to the best of the seller's belief and knowledge," and the seller is not liable for errors "not within the personal knowledge of the seller" ((5), (8)) — which, for the person who built the house, is a narrower shield than usual. The inspection log and the registrations in NE.3 are what you will be disclosing from.

QUALIFICATION CHECKLIST — WORK THIS WITH A PEN

Confirm each of these before you break ground

	Item	Date	Notes
☐	I asked the county clerk whether a building code was adopted by resolution and whether a zoning permit is required for a nonfarm dwelling — and, if I am inside a city or its extraterritorial zone, I asked the city. Answer and date: Answer _____ Date _____		
☐	I looked my parcel up on the State Electrical Division's inspection map. Electrical inspection where I am building is: State / local program _____ Date read _____		
☐	I am the record owner, and this house will be my principal residence — not a rental, not for sale — so the electrical homeowner exemption reaches me.		
☐	I understand the code binds this house whether or not anyone inspects it, that I am the "prime contractor" for the energy code, and that a two-year correction order follows first occupancy.		
☐	If I am building on a farmstead, I asked the county board in writing whether the residence is subject to its zoning permit. Answer: Answer _____ Who told me _____		
☐	Every trade I hire appears in the Department of Labor contractor registry, and I noted each one's workers' compensation flag. Outstanding: Still to check _____		
☐	I collected a workers' compensation certificate (ACORD 25) from every contractor with employees before they started. Outstanding: Still needed from _____		
☐	I have chosen a certified Master Installer, engineer or environmental health specialist for the septic system, because I may not build it myself.		

Confirm each of these before you break ground

	Item	Date	Notes
☐	If I am drilling my own well, I understand the Title 134 standards apply to me and that I register it within 60 days. Otherwise my driller's license number: License _____		
☐	If I am doing my own wiring, I will file the request for inspection with the homeowner verification before I start, and I know the utility will not connect me until I certify it was filed. Filed: Date _____ Permit number _____		
☐	I am collecting a signed lien waiver at every payment to every trade, and I will keep any notice of the right to assert a lien with its date.		

Every statute cited here is free to read at one address you can type:

nebraskalegislature.gov/laws/statutes.php?statute=81-2121 — swap in any section number, comma included (81-15,248). Each page ends with a **Source** line naming every session law that touched it and, after a recent change, an **Effective Date** line. Read that line before you rely on the section. The rules are PDFs: Title 124 (septic) and Title 134 (wells) at **dwee.nebraska.gov**, the electrical Board rules at **electrical.nebraska.gov/statutes-rules**. **One warning:** the Board's rules PDF (April 2024) still calls an unfiled request for inspection a misdemeanor. Since July 18, 2026 the statute says felony. The statute wins. Read September 2026.